

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alyssa Rogowski	Team: Squad #07	CCRB Case #: 201809946	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 11/21/2018 8:15 PM	Location of Incident: Between 62nd Street and 63rd Street on Broadway	18 Mo. SOL 1/5/2021	Precinct: 20
Date/Time CV Reported Wed, 11/21/2018 8:18 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/29/2018 11:10 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SDS Brian Coughlan	00317	963353	BOMB SQ

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Levy Garcia	05274	936646	020 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SDS Brian Coughlan	Abuse: Sergeant Brian Coughlan threatened to arrest § 87(2)(b)	A . Exonerated
B . SDS Brian Coughlan	Discourtesy: Sergeant Brian Coughlan gestured discourteously toward § 87(2)(b)	B . Unsubstantiated
C . SDS Brian Coughlan	Abuse: Sergeant Brian Coughlan threatened to have § 87(2)(b)'s taxi license revoked.	C . Unsubstantiated
D . SDS Brian Coughlan	Discourtesy: Sergeant Brian Coughlan acted discourteously toward § 87(2)(b)	D . Unsubstantiated

Case Summary

On November 21st, 2018, § 87(2)(b) filed the following complaint via call to IAB.

On November 21st, 2018 at approximately 8:15pm, § 87(2)(b) was driving a yellow cab in Columbus Circle in Manhattan when a black vehicle swerved into her lane and cut her off. § 87(2)(b) honked her horn at the vehicle. At the red light at 62nd Street and Broadway, § 87(2)(b) pulled behind the black vehicle and activated her high beams to see the vehicle's license plate number. She then pulled next to the vehicle and told the male driver, identified as Sergeant Brian Coughlan of the Bomb Squad, "How do you drive like this? You could have killed us." Sgt. Coughlan then activated police lights and yelled into a microphone, "Pull over!" and "I will arrest you right now" (**Allegation A: Abuse of Authority, exonerated**).

§ 87(2)(b) pulled over just north of 62nd Street on Broadway then Sgt. Coughlan approached her vehicle and immediately opened her driver's side door. § 87(2)(b) decided to call 911 and when Sgt. Coughlan heard her on the phone with 911, he leaned towards § 87(2)(b) yelled that he was a sergeant, then, using his pointer finger, Sgt. Coughlan jabbed § 87(2)(b) in the shoulder (**Allegation B: Discourtesy, unsubstantiated**). Sgt. Coughlan then demanded her taxi license and stated, "I can take you off the street." (**Allegation C: Abuse of Authority, unsubstantiated**). Sgt. Coughlan then slammed her door (**Allegation D: Discourtesy, unsubstantiated**) and took her two licenses back to his police car.

No video evidence was obtained capturing this incident.

Findings and Recommendations

Allegation A—Abuse of Authority: Sergeant Brian Coughlan threatened to arrest § 87(2)(b)

Allegation B—Discourtesy: Sergeant Brian Coughlan gestured discourteously toward

§ 87(2)(b)

Allegation C—Abuse of Authority: Sergeant Brian Coughlan threatened to have § 87(2)(b)
s taxi license revoked.

Allegation D—Discourtesy: Sergeant Brian Coughlan acted discourteously toward § 87(2)(b)

On November 21, 2018 at approximately 8:15pm, § 87(2)(b) was driving a yellow cab in Columbus Circle and intended to exit at 60th Street and Broadway heading northbound (Board Review 01, 02). § 87(2)(b) did not have any passengers at this time and was alone in the yellow cab. As § 87(2)(b) drove around the circle, a black vehicle swerved into her lane and cut her off. § 87(2)(b) swerved to avoid being hit and honked her horn. At the next red light, § 87(2)(b) pulled behind the black vehicle and activated her high beams to see the vehicle's license plate number. When she observed that the license plate was not that of a taxi or livery vehicle, she pulled next to the black vehicle. The male rolled his passenger window down and asked her, "What?" § 87(2)(b) put her window down and told him, "How do you drive like this? You could have killed us." The male driver then activated police lights and yelled into a microphone, "Pull over!" and "I will arrest you right now," repeating that he would arrest her three times. At this point, § 87(2)(b) and the black vehicle were still stopped at a red light so § 87(2)(b) was not able to immediately pull over because of pedestrians in the intersection.

When the light changed, § 87(2)(b) pulled through the intersection and off to the right side of the road, stopping just north of 62nd Street on Broadway. The black vehicle pulled over behind her. § 87(2)(b) lowered her driver's side front window halfway so that she could speak with Sgt. Coughlan. When Sgt. Coughlan approached her vehicle, however, he immediately reached over

and opened the driver's side door. When he pulled her door open, § 87(2)(b) decided to call 911 because she was afraid. § 87(2)(b) told the female 911 operator that this officer in plainclothes was pulling her over and asked the 911 operator to send a supervisor to the scene. Sgt. Coughlan heard her on the phone with 911 and while placing his hands on the doorframe of the open driver's side, he leaned towards § 87(2)(b) and yelled, "I am a sergeant," and, "I am 911." Sgt. Coughlan then, using his pointer finger, jabbed § 87(2)(b) in the shoulder.

Sgt. Coughlan asked for her license. When § 87(2)(b) reached for her taxi license, Sgt. Coughlan yelled that he did not want that license, he wanted her driver's license. § 87(2)(b) then gave him her driver's license. § 87(2)(b) was still on the phone with 911 at this point and told the 911 operator that she would take this officer to civil court. When Sgt. Coughlan overheard that, he then demanded her taxi license and stated, "I can take you off the street," which § 87(2)(b) took as a threat to revoke her taxi license. § 87(2)(b) handed over her taxi license. Sgt. Coughlan then yelled at her about having high beams. § 87(2)(b) told him she did not have high beams on and Sgt. Coughlan told her to get out of the car so that he could show her. § 87(2)(b) yelled that she would not get out of the car and told him to close the door. Sgt. Coughlan then slammed her door and took her two licenses back to his police car.

The investigation obtained a recording of the 911 call § 87(2)(b) made during her interaction with Sgt. Coughlan (Board Review 03). Throughout the recording, Sgt. Coughlan can be heard in the background identifying himself and asking for § 87(2)(b)'s license and registration approximately five times. At the 1:08 mark, Sgt. Coughlan states that § 87(2)(b) does not need a supervisor and identifies himself as a sergeant with the NYPD. At the 2:00 mark in the recording, Sgt. Coughlan states, "I am asking you for your license and registration. If you do not give your license and registration, I will place you under arrest." Throughout the recording, § 87(2)(b) can be heard telling Sgt. Coughlan to not touch him. At 1:21 mark, Sgt. Coughlan repeats that he is not touching her at all and stated that he never touched her. The call ends when § 87(2)(b) hangs up on the operator after repeating her request for a sergeant to be sent to the scene.

Sergeant Levy Garcia of the 20th Precinct responded to 63rd Street and Broadway in Manhattan following a central request for a patrol supervisor to respond to the location (Board Review 04). When he arrived at the location, he observed what appeared to be a car stop executed by an unmarked police vehicle. Sgt. Garcia went to the unmarked police vehicle and was approached by a plain clothes officer who identified himself as Sgt. Coughlan. Sgt. Coughlan stated that when he pulled the vehicle over and approached the driver, § 87(2)(b) she did not believe that Sgt. Coughlan was an officer. Sgt. Garcia does not remember Sgt. Coughlan saying anything else specific about his interaction with § 87(2)(b) other than that she had not pulled over right away. Sgt. Garcia did not observe any direct interaction between § 87(2)(b) and Sgt. Coughlan as when he arrived on scene, Sgt. Coughlan was in his vehicle and § 87(2)(b) was in her taxi.

Sgt. Garcia then approached the taxi. He told § 87(2)(b) that Sgt. Coughlan was in fact an officer and that she should comply with him. § 87(2)(b) seemed agitated. She did not say anything to Sgt. Garcia about her interaction with Sgt. Coughlan. § 87(2)(b) did not say anything to Sgt. Garcia about Sgt. Coughlan threatening to arrest her, jabbing her in the shoulder, or threatening to revoke her taxi license. At no point did Sgt. Garcia observe Sgt. Coughlan slam § 87(2)(b)'s driver's side door nor was he ever informed that this had happened. Sgt. Garcia remained on scene for about another 20 minutes, during which time officers from the city-wide transit task force (CTTF) arrived. Sgt. Coughlan then told Sgt. Garcia that he had everything under control so Sgt. Garcia resumed patrol.

Sgt. Coughlan recalled that on November 21st, 2018 at approximately 8:15pm, he was driving around Columbus Circle in the far-right lane (Board Review 05). Just before the corner of 60th Street, Sgt. Coughlan observed a vehicle stopped in the middle lane waiting to make an improper left turn and a taxi stopped behind it. As Sgt. Coughlan drove by, the taxi driver, § 87(2)(b) attempted to cut into Sgt. Coughlan's lane in front of him to get out from behind the stopped vehicle in her lane. Sgt. Coughlan drove past her and § 87(2)(b) honked her horn at him. Sgt. Coughlan believes that she only blew the horn once. Sgt. Coughlan stated that improper use of horn is a VTL violation, which he knows from his time working as an officer in Midtown.

As he drove through the intersection, Sgt. Coughlan noticed that § 87(2)(b) was flicking her high beams on and off. She then pulled into his lane behind him and came up close to the back of his vehicle with her high beams on. Sgt. Coughlan stopped at a red light and § 87(2)(b) pulled up next to him in the left lane. Sgt. Coughlan's driver's side window was already rolled down and § 87(2)(b) rolled her passenger side window down, then began to scream and curse at Sgt. Coughlan, telling him that he was an asshole and asking why he had not let her into his lane. Sgt. Coughlan told her that she could not drive with her high beams on and § 87(2)(b) told him that she had put her high beams on because he drove like an asshole. At this point, Sgt. Coughlan identified himself as a police officer and instructed her to pull over using the microphone. When the light turned green, § 87(2)(b) at first refused to move. When she did move into the right lane in front of Sgt. Coughlan, she stopped just over the other line of the intersection so that Sgt. Coughlan ended up blocking the intersection. Sgt. Coughlan recalled that he had to ask her to move up about three times. Sgt. Coughlan did not say that § 87(2)(b) could be arrested over the microphone.

When he had finally pulled § 87(2)(b) over, Sgt. Coughlan approached her vehicle and identified himself as a police officer, stating that he was Sgt. Brian Coughlan of the NYPD Bomb Squad, and that he needed her license and registration. Sgt. Coughlan also explained to her that he had pulled her over because of her improper use of her high beams. Sgt. Coughlan clarified that when he exited his own vehicle, he put his shield and firearm outside of his bomb squad sweatshirt at his waist so that both were visible. § 87(2)(b) ignored him and had turned her body so that the back of her left shoulder was facing the driver's side window. She also refused to lower the window. He observed that she was on the phone and told her that she needed to hang up the phone and provide her license, registration, and hack license. Sgt. Coughlan stated that he had repeated his request for her information at least six times. After about the fifth request, Sgt. Coughlan told her, "Ma'am if you continue to refuse to acknowledge me and fail to provide your license and registration, I will place you under arrest for obstructing governmental administration." Throughout this initial interaction, Sgt. Coughlan is speaking to § 87(2)(b) through the closed car window as she had continued to refuse to lower the window.

Sgt. Coughlan heard § 87(2)(b) screaming into the phone asking for a supervisor so he told her that he was a supervisor and again introduced himself as Sergeant Coughlan. Sgt. Coughlan told her that he would call another supervisor over but that she had to give him her license and registration, and hack license. § 87(2)(b) started to put her hands down near her lap so Sgt. Coughlan told her, "Ma'am I need to see her hands." At this point, Sgt. Coughlan's left hand was on the door handle and as he leaned towards the window to see where § 87(2)(b)'s hands were, he lifted up on the handle and the door opened. Sgt. Coughlan then opened the door all the way. He stated that at this point he was thinking she was possibly an EDP and he wanted to be able to clearly see what she was doing.

§ 87(2)(b) was still on the phone and now that the door was open, Sgt. Coughlan he could see on her phone screen that she was speaking to 911. § 87(2)(b) stated to 911, “He’s touching me.” Sgt. Coughlan loudly stated that he was not touching her, he did not touch her, and he would not touch her but that she needed to provide her license and hack license. Sgt. Coughlan said this loudly, hoping 911 would hear him. Sgt. Coughlan stated that he made such a detailed entry in his memo book about the alleged touching because he wanted it to be clear on the record that he had not touched her. At no point during this interaction did Sgt. Coughlan make contact with § 87(2)(b). § 87(2)(b) continued to yell for a supervisor and curse at Sgt. Coughlan. After almost five minutes, § 87(2)(b) hung up with 911 and handed over her licenses and registration. Before she hung up the phone, Sgt. Coughlan could hear the operator telling § 87(2)(b) that they were sending officers over. Sgt. Coughlan stated that there was no argument about § 87(2)(b)’s high beams, and that other than cursing at him and requesting a supervisor, § 87(2)(b) did not say anything else in particular. Sgt. Coughlan did not say anything to § 87(2)(b) about revoking her taxi license and does not even know if it is possible for an officer to revoke a TLC license.

After § 87(2)(b) handed over her licenses and registration, Sgt. Coughlan closed her driver’s side door. Sgt. Coughlan did not slam her door. After he closed her door, § 87(2)(b) rolled her driver’s side window down. Sgt. Coughlan took her licenses and registration back to his vehicle. He had no further direct interaction with her.

NYPD Patrol Guide Procedure 209-09 states in sum and substance that when serving summonses for traffic violations, members of service are to request that the violator show proof of identity and residence and that if doubt concerning the violator’s identity exists, the violator may be removed to the command for investigation (Board Review 06).

It is undisputed that Sgt. Coughlan told § 87(2)(b) that she could be arrested. § 87(2)(g)

It is therefore recommended that **allegation A** be closed as **exonerated**.

§ 87(2)(b) alleged that Sgt. Coughlan jabbed her in the shoulder with his finger, and in the 911 recording, § 87(2)(b) can be heard repeating, “Don’t touch me.” Sgt. Coughlan denied that he made any contact with § 87(2)(b). § 87(2)(g)

. It is therefore recommended that **allegation B** be closed as **unsubstantiated**.

Though § 87(2)(b) alleged that Sgt. Coughlan threatened to revoke her taxi license, Sgt. Coughlan stated that he did not say anything to § 87(2)(b) about revoking her taxi license and does

§ 87(2)(g)

It is therefore recommended that **allegation C** be closed as **unsubstantiated**.

It is undisputed that after he obtained her license and registration, Sgt. Coughlan closed the driver's side door of § 87(2)(b)'s vehicle. § 87(2)(g)

It is therefore recommended that **allegation D** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (Board Review 07).
- Sergeant Brian Coughlan has been a member-of-service for 30 years and this is the first CCRB complaint to which he has been party.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On March 5th, 2019, a request for any record of a Notice of Claim being filed in regard to this complaint was sent to the New York City Office of the Comptroller. The response will be added to the case file upon receipt.

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date